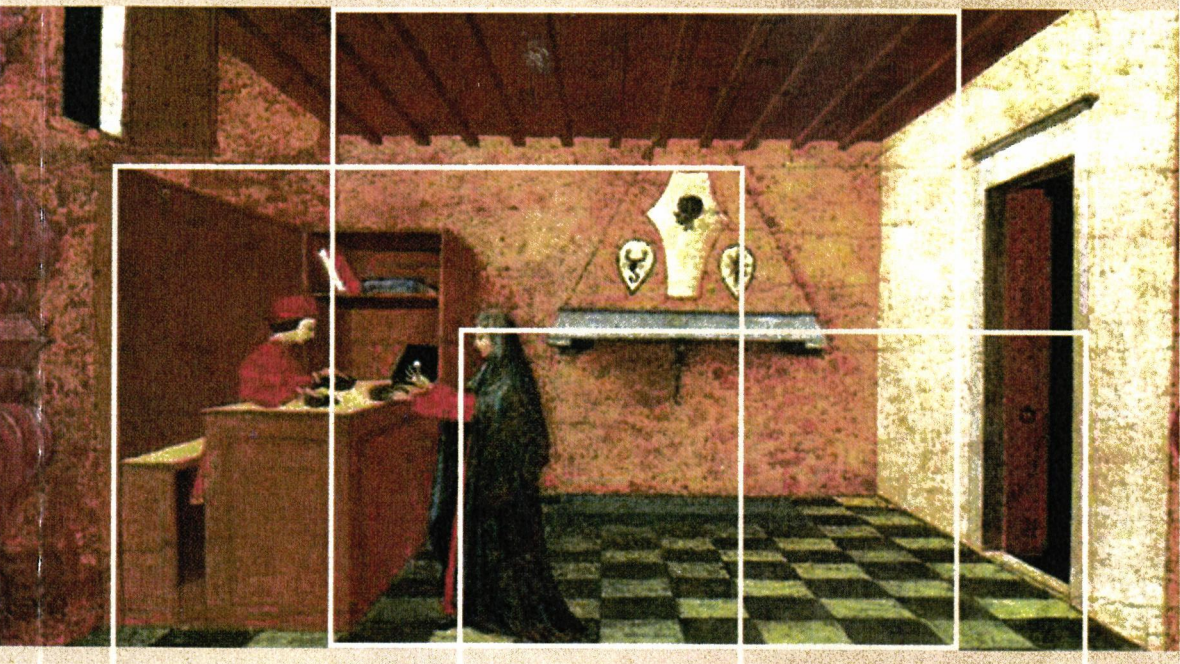
International Labour Organization
Geneva

MERCHANTS OF LABOUR

International Institute for Labour Studies

Editor
Christiane KUPTSCH



Contributors

Beate ANDREES
Cesar A. AVERIA Jr.
Ibrahim AWAD
Bernd BALKENHOL
Nilim BARUAH
John CONNELL
Mary CUNNEEN
Luc DEMARET
Mohammed DITO
Christiane KUPTSCH
Philip MARTIN
Alan MATHESON
Anna di MATTIA
Susan MAYBUD
NG Cher Pong
Rajendra G. PARATIAN
Dan REES
L.K. RUHUNAGE
Verena SCHMIDT
Tasneem SIDDIQUI
Barbara STILWELL
Christiane WISKOW

106B09/9
engl cp.2

MERCHANTS OF LABOUR

Editor
Christiane KUPTSCH*

Contributors

Beate ANDREES
Cesar A. AVERIA Jr.
Ibrahim AWAD
Bernd BALKENHOL
Nilim BARUAH
John CONNELL
Mary CUNNEEN
Luc DEMARET
Mohammed DITO
Bruce GOLDSTEIN
Eric GRAVEL
Ellen HANSEN
Christian HESS
Christiane KUPTSCH
Philip MARTIN
Alan MATHESON
Anna di MATTIA
Susan MAYBUD
NG Cher Pong
Rajendra G. PARATIAN
Dan REES
L.K. RUHUNAGE
Verena SCHMIDT
Tasneem SIDDIQUI
Barbara STILWELL
Christiane WISKOW

* I wish to express my sincere gratitude to both Anna di Mattia and Kristen O'Connor for their most valuable assistance with the English language editing of this volume and thank Anna di Mattia for her support, dedication and hard work in organizing the 'Merchants of Labour Policy Dialogue' where the idea for this book was born.

International Institute for Labour Studies Geneva
International Labour Office Geneva

Published by the International Institute for Labour Studies

The *International Institute for Labour Studies* (IILS) was established in 1960 as an autonomous facility of the International Labour Organization (ILO) to further policy research, public debate and the sharing of knowledge on emerging labour and social issues of concern to the ILO and its constituents — labour, business and government.

Copyright © International Labour Organization (International Institute for Labour Studies) 2006.

Short excerpts from this publication may be reproduced without authorization, on condition that the source is indicated. For rights of reproduction or translation, application should be made to the Director, International Institute for Labour Studies, P.O. Box 6, CH-1211 Geneva 22, Switzerland.

ISBN (Print) 92-9014-780-6
ISBN (Web PDF) 92-9014-782-2

First published 2006

Cover photocredit: http://gemaelde-archiv.gemaelde-webshop.de/gemaelde/std/paolo-uccello-predellatafel-zum-hostienwunde-09945.jpg

The responsibility for opinions expressed in signed articles, studies and other contributions of this volume rests solely with their authors, and their publication does not constitute an endorsement by the International Institute for Labour Studies of the opinions expressed.

Copies can be ordered from: ILO Publications, International Labour Office, CH-1211 Geneva 22, Switzerland. For on-line orders, see www.ilo.org/publns

Photocomposed in Switzerland BRI
Printed in France NOU

Contents

List of contributors . . . . . **ix**

Foreword . . . . . **xi**
Gerry Rodgers

Introductory overview **1**
Christiane Kuptsch

Part I: 'Merchants' of various types: yesterday and today **13**

Regulating private recruiters: The core issues 13
Philip Martin

Recruitment bureaux and money transfer agencies: Similarities and differences 27
Bernd Balkenhol

'Merchants of labour' in three centuries: Lessons from history for reforming 21st century exploitation of migrant labour 31
Bruce Goldstein

Part II: The empirical framework: Country and regional experiences **37**

The regulation of recruitment agencies: Experience and good practices in countries of origin in Asia 37
Nilim Baruah

Private recruitment agencies in the era of globalization: Challenges and responses – The case of the Philippines 47
Cesar A. Averia, Jr.

Institutional monitoring of migrant recruitment in Sri Lanka 53
L.K. Ruhunage

Protection of Bangladeshi migrants through good governance 63
Tasneem Siddiqui

Australia: 'Good practice'! 91
Alan Matheson

Management of foreign workers in Singapore:
Regulation of employment agents 99
Ng Cher Pong

What can we learn from Bahrain's labour market reform? 109
Mohammed Dito

Merchants of labour in the Middle East and North Africa:
Egypt as a case study 115
Ibrahim Awad

The South African experience 121
Rajendra G. Paratian

Part III: Recruitment and ILO standards 145

ILO standards concerning employment services 145
Eric Gravel

ILO Convention 181: The employers' perspective 155
Christian Hess

Private employment agencies: The challenges ahead
from the workers' perspective 159
Luc Demaret

Implementation of Convention 181 through regulation
– The ILO experience 169
Ellen Hansen

Combating criminal activities in the recruitment of migrant workers 175
Beate Andrees

Part IV: Innovative policy and possible protection strategies 185

Strategies to combat forced labour in the context of migration . . . 185
Mary Cunneen

Temporary migrant workers: Organizing and protection strategies
by trade unions 191
Verena Schmidt

Curbing malpractice: The role of information campaigns in international labour migration 207
Anna di Mattia

New measures to tackle exploitation in the UK agricultural industry 217
Dan Rees

'Care trade': The international brokering of health care professionals 223
Susan Maybud and *Christiane Wiskow*

Merchants of medical care: Recruiting agencies in the global health care chain 239
John Connell and Barbara Stilwell

Annex I:

"Merchants of labour: Policy dialogue on the agents of international labour migration": Agenda 255

Annex II:

"Merchants of labour: Policy dialogue on the agents of international labour migration": List of participants 257

Protection of Bangladeshi migrants through good governance

Tasneem Siddiqui[1]

Migration of labour has been a significant factor in growth and development of many countries. Nonetheless labour migration has become an extremely exploitative and complex phenomenon. International regimes involved in managing voluntary labour migration now highlights the need for development of national and regional policies along with international instruments to make migration a mutually beneficial experience for all parties involved, the receiving and sending countries, and those who migrate.

Bangladesh is one of the major labour-sending countries. Each year, a large number of people voluntarily migrate overseas for both long and short-term employment (Table 1). This paper highlights the challenges that Bangladesh faces in ensuring effective governance of the migration sector as a whole, and of the recruitment industry in particular. It emphasises the need for pro-active migration policy and action by the public and private sectors and civil society, to ensure greater benefit of the state and communities, and protection to those who migrate.

This paper is based on secondary information. Over the last five years, some important empirical studies have been conducted on international migration. A number of conferences, seminars and workshops have also been organized. This paper relies on the findings of these studies and conference proceedings.

[1] Professor of Political Science, and Chair of the Refugee and Migratory Movements Research Unit (RMMRU), University of Dhaka, Bangladesh.

Table 1: Percentage distribution of Bangladeshi migrant workers by level of skills (1976- Sept 2003)

Year	Professional	Skilled	Semi-skilled	Unskilled	Total
1976	9.33	29.16	8.92	52.59	6087
1977	11.23	41.00	3.12	44.66	15725
1978	15.15	35.91	4.60	44.34	22809
1979	14.26	28.60	6.88	50.26	24495
1980	6.59	40.60	7.79	45.02	30073
1981	6.98	40.21	4.39	48.42	55787
1982	6.21	32.84	5.21	55.74	62762
1983	3.08	31.98	8.61	56.33	59220
1984	4.66	30.30	9.67	55.37	56714
1985	3.31	36.33	10.07	50.30	77694
1986	3.22	38.30	13.49	44.99	68658
1987	3.00	32.21	13.00	51.79	74017
1988	3.92	37.12	15.99	43.09	68121
1989	5.23	38.16	17.36	39.24	101724
1990	5.78	34.30	20.03	39.88	103814
1991	6.13	31.87	22.16	39.84	147131
1992	6.05	26.94	16.47	50.54	188124
1993	4.54	29.31	27.06	39.09	244508
1994	4.50	32.76	24.97	37.77	186326
1995	3.39	31.94	17.09	47.58	187543
1996	1.51	30.37	16.38	51.74	211714
1997	1.64	28.22	18.85	51.29	231077
1998	3.58	27.91	19.27	49.23	267667
1999	3.00	36.71	16.76	43.53	268182
2000	4.79	44.73	11.88	38.60	222686
2001	3.14	22.62	16.25	57.99	188965
2002	6.41	24.98	15.99	52.61	225256
2003 (Jan-Sept)	6.09	29.53	11.93	52.45	185523
Total	**4.40**	**31.80**	**16.66**	**47.14**	**3582402**

Note: 150,000 Bangladeshi workers legalized in Malaysia during 1997

Source: Prepared from BMET data 2003.

Importance of migration

Migration and the economy of Bangladesh

Remittances are a substantive yardstick of macro level benefits of migration to sending countries. The Bangladesh Bank[2] data show that the remittances sent by overseas wage earners have grown over time (Table 2). Throughout the last 25 years, the remittance flows broadly indicate an average yearly increase of around 10 percent.

Remittance plays a vital role in the economy of Bangladesh. The country has a very narrow export base. Ready-made garments, frozen fish, jute, leather and tea account for four-fifths of its export earnings. Currently, garments manufacturing is treated as the highest foreign exchange earning sector of the country (US$4.583[3] billion in 2003). However, if the earnings are adjusted with the cost of import of raw material, then the net earnings from migrant workers' remittances is higher than that of the garments sector. In 2003, net export earnings from ready-made garments (RMG) were estimated to be between US$2.29 billion and US$2.52 billion, whereas the net earnings from remittances were more than US$3 billion. In fact, since the 1980s, contrary to popular belief, remittances sent by migrant workers have played a much greater role in sustaining the economy of Bangladesh than the garments sector.[4]

During the period 1977-1998, the annual average contribution of remittances to foreign exchange earning was 26.5 percent (Siddiqui and Abrar, 2001). This has been used in financing the import of capital goods and raw materials for industrial development. In 1998-1999, 22 percent of the official import bill was financed by remittances (Afsar et al, 2000; Murshid et al, 2000). The steady flow of remittances has resolved the problem of foreign exchange constraints, improved the balance of payments and helped increase the supply of national savings (Quibria, 1986). Remittances are also important when considered in the backdrop of the country's development budget. In select years in the 1990s, remittances were equivalent to the country's development budget. The Government

---

[2] The central bank of Bangladesh.

[3] US$ 1.00 is equivalent to Bangladesh taka 62.50 at present.

[4] Speech delivered by Professor Wahiduddin Mahmud, Former Advisor to the Interim Government of Bangladesh in 1996, at a conference on 'Streamlining Labour Recruitment Process in Bangladesh for Employment Abroad', 24 September 2001. Quoted in Siddiqui T. (ed) 2002, Beyond the Maze, p. 53.

Table 2. Migration by Country of Employment and Flow of Remittances (1976- 2003)

Country	K.S.A	Kuwait	U.A.E	Qatar	Iraq	Libya	Bahrain	Oman	Malaysia	Korea	S.Pore	Others	Total	Remittances	
Year														Million US	(Crore Tk.)
1976	217	643	1989	1221	587	173	335	113				809	6087	23.71	35.85
1977	1379	1315	5819	2262	1238	718	870	1492				632	15725	82.79	125.16
1978	3212	2243	7512	1303	1454	2394	762	2877	23			1029	22809	106.9	165.59
1997	6476	2298	5069	1383	2363	1969	827	3777			110	223	24495	172.06	266.95
1980	8695	3687	4847	1455	1927	2976	1351	4745	3		385	2	30073	301.33	492.95
1981	13384	5464	6418	2268	13153	4162	1392	7352			1083	1111	55787	304.88	620.74
1982	16294	7244	6863	6252	12898	2071	2037	8248			331	524	62762	490.77	1176.84
1983	12928	10283	6615	7556	4932	2209	2473	11110	23		178	913	59220	627.51	1568.76
1984	20399	5627	5185	2726	4701	3386	2300	10448			718	1224	56714	500	1265.49
1985	37133	7384	8336	4751	5051	1514	2965	9218			792	550	77694	500	1419.61
1986	27235	10286	8790	4847	4728	3111	2597	6255	53		25	254	68658	576.2	1752.85
1987	39292	9559	9953	5889	3847	2271	2055	440				711	74017	747.6	2313.94
1988	27622	6524	13437	7390	4191	2759	3268	2219	2			709	68121	763.9	2423.59
1989	39949	12404	15184	8462	2573	1609	4830	15429	401		229	654	101724	757.85	2446
1990	57486	5957	8307	7672	2700	471	4563	13980	1385		776	517	103814	781.54	2691.63
1991	75656	28574	8583	3772		1124	3480	23087	1628		62	585	147131	769.3	2818.65
1992	93132	34377	12975	3251		1617	5804	25825	10537		313	293	188124	901.97	3513.26
1993	106387	26407	15810	2441		1800	5396	15866	67938		1739	724	244508	1009.09	3986.97
1994	91385	14912	15051	624		1864	4233	6470	47826	1558	391	2012	186326	1153.54	4629.63
1995	84009	17492	14686	71		1106	3004	20949	35174	3315	3762	3975	187543	1201.52	4838.31
1996	72734	21042	23812	112		1966	3759	8691	66631	2759	5304	4904	211714	1355.34	5685.3

Country	K.S.A	Kuwait	U.A.E	Qatar	Iraq	Libya	Bahrain	Oman	Malaysia	Korea	S.Pore	Others	Total	Remittances	
Year														Million US	(Crore Tk.)
1997	106534	21126	54719	1873		1934	5010	5985	152844	889	27401	2762	381077	1525.03	6709.15
1998	158715	25444	38796	6806		1254	7014	4779	551	578	21728	2602	267667	1599.24	7513.18
1999	26286	3324	3912	864		239	666	713		136	1000	563	268182	1806.63	8882.74
2000	144618	594	34034	1433		1010	4637	5258	17237	990	11095	1780	222686	1954.95	10199.12
2001	137248	5341	16252	223		450	4371	4561	4921	1561	9615	4422	188965	2068.72	11577.63
2002	163254	15767	25438	552		1575	5370	3927	85	28	6870	2390	225256	2847.79	16484.53
2003	95319	7908	22336	64		1991	3634	2166	7	149	3313	2542	139429	1858.39	10760.5
Total	**1826431**	**332302**	**429160**	**92270**	**66343**	**51228**	**92976**	**229312**	**257746**	**13328**	**103069**	**39416**	**3536308**	**26790.85**	**116378.13**

Source: Prepared from BMET and Bangladesh Bank data 2003

of Bangladesh treats foreign aid (concessional loans and grants) as an important resource base for the country. However, the amount Bangladesh received through remittances in 2003 was twice that of foreign aid.

The contribution of remittances to Gross Domestic Product (GDP) has also grown from a meagre 1 percent in 1977-1978 to 5.2 percent in 1982-83. During the 1990s, the ratio hovered around 4 percent. However, if the unofficial flow of remittances is taken into account, the total contribution of remittances to GDP would certainly be much higher. Murshid et al, (2000) finds that an increase of Taka (Tk) 1 in remittances would result in an increase in national income of Tk 3.33.

Following the phasing out of the Multi-Fibre Agreement (MFA) at the end of 2004, Bangladesh ceased to enjoy any special quota and faces steep competition in the export of RMG. As a result, the country's RMG export is expected to decline sharply. This is likely to result in the large scale loss of jobs and a shortfall in foreign exchange earning. The potential for absorbing laid-off garments workers and compensating for lost export earnings through increased exports of other commodities (e.g. frozen fish, jute, leather and tea) appears rather bleak. It is in this context that labour migration has become a key sector for earning foreign exchange and for creating opportunities for employment. Therefore, the importance of labour migration to the economy of Bangladesh can hardly be overemphasized.

Creation of overseas and domestic jobs

Since the mid-1970s, more than 3 million people have gone abroad to take up employment. It is estimated that at any given time over the last ten years, at least 1 million Bangladeshis are employed abroad. Bangladeshi migrant workers are predominantly men. During the period 1991-2003, women constituted less than 1 percent of those who migrated from Bangladesh officially (Table 3). A large number of Bangladeshis, both men and women, are believed to have gone abroad through irregular channels.

The major countries of destination for short-term migrants from Bangladesh currently include: Saudi Arabia, the United Arab Emirates (UAE), Bahrain, Brunei, Hong Kong (China), Kuwait, Malaysia, Oman, Qatar, Singapore, and the Republic of Korea. Saudi Arabia alone accounts for nearly one half of the total number of workers who have

Table 3: Number and percentage of women migrants in comparison to total flow (1991-2003)

Year	Women Migrants		Total Number Male and Female
	Number	% of Total	
1991-1995	9308	0.98	953632
1996	1567	0.74	211714
1997	1762	0.76	231077
1998	939	0.35	267667
1999	366	0.14	268182
2000	454	0.20	222686
2001	659	0.35	188965
2002	1217	0.54	225256
2003 (Jan-Sept)	1240	0.67	185523
Total	**17512**	**0.64**	**2754693**

Source: Prepared from manually consolidated figures provided by BMET, 2003.

migrated from Bangladesh. However, the labour market for Bangladeshi migrant workers is not static. Destination countries are changing all the time. Bangladesh mostly participates in the low-skilled and unskilled end of the global market. Only a small proportion of migrants are professionals (4.40 percent), 31 percent of them are skilled, 16 percent semi-skilled and 47 percent are unskilled workers.

In addition to direct employment, migration has also indirectly contributed to the creation of employment. Recent studies (Siddiqui and Abrar 2001, Murshid et al 2000) have shown that the family members of migrants have used a portion of their remittances in generating income and employment. Siddiqui and Abrar found that 100 families from Tangail and Chittagong spent 11.24 percent of their remittances in agricultural land purchase, 2.24 percent in either paying off or taking out a mortgage on land for cultivation, 5 percent for investment in micro- and small enterprises and another 3.5 percent in savings, bonds and insurance. A further 7.19 percent of the total remittance went into financing the migration of other household members (Table 4). In addition, the capacity of the migrants' families to buy consumable items helps sustain local small businesses and producers.

Meanwhile, demand for better governance of migration has created jobs in the public sector as well. A new ministry has been created with a

Table 4: Utilisation of remittances by 100 households

Use	In taka	%
Food and clothing	4,466,280	2.45
Medical treatment	703,800	3.22
Child education	600,940	2.75
Agricultural land purchase	2,455,400	11.24
Homestead land purchase	210,000	0.96
Home construction/repair	3,280,000	15.02
Release of mortgaged land	490,000	2.24
Taking mortgage on land	435,000	1.99
Repayment of loan (for migration)	2,304,600	10.55
Repayment of loan (other purpose)	757500	3.47
Investment in business	1,039,200	4.76
Savings/fixed deposit	670,000	3.07
Insurance	72,140	0.33
Social ceremonies	1,980,000	9.07
Gift/donation to relatives	205,000	0.94
Send relative for pilgrimage	200,000	0.92
Community development activities	20,520	0.09
Sending family member abroad	1,571,000	7.19
Furniture	151,300	0.69
Others	227,000	1.04
Total	**21,839,680**	**100.00**

Source: Siddiqui and Abrar, 2001.

state minister, secretary and other associated staff. Forty-eight skill training centres and the Bureau of Manpower, Employment and Training (BMET) are among the major agencies creating jobs in the public sector. The movement of migrants also has relevance in determining the size of the Ministry of Civil Aviation, and Customs and Immigration Departments. Migrants also constitute a majority of the customers of Biman Bangladesh airlines. The presence of airlines of the Gulf and South-East Asian countries has also created jobs for a large number of people. A powerful private sector has emerged, centered around the recruitment industry. Private recruiting agencies, their agents and sub-agents, travel agencies, medical centres and inter-state transportation owners and workers all earn their livelihood through their involvement in processing migration. There are 700 licensed recruiting agencies, 10,000 sub-agents and around 1,350 travel agencies.

One can see that short-term migration has been extremely successful in creating a large number of jobs for Bangladeshis. Along with the employment of workers overseas, it has also created jobs within Bangladesh. In the public sector a few agencies and a new ministry have been created to manage migration. The facilitation of migration has created jobs in the private sector as well.

Governance of migration

Successive governments realised the importance of labour migration and took different measures to govern. They created various institutions, promulgated statutory regulatory orders, framed rules, and tried to negotiate bilateral agreements.

National instruments

Emigration from Bangladesh used to be governed by the Emigration Ordinance, 1922. In 1982, the Government promulgated a new Emigration Ordinance. This is currently the key regulatory instrument in relation to migration. Under the terms of the Ordinance, the government regulates the private recruiting agencies of Bangladesh and provides clearance to those who go abroad for employment. On 11 April 1983, by a notification[5] of the Labour and Manpower Ministry, the Government set up four Special Courts in each of the divisions of the country (Dhaka, Chittagong, Khulna and Rajshahi).

In December 2002, the present Government framed three rules under the 1982 Ordinance: Emigration Rules; Rules for Conduct and Licensing Recruiting Agencies; and Rules for Wage Earners' Welfare Fund. A National Migration Policy is currently being developed. The main principle of the policy is "the government of Bangladesh will provide all kinds of assistance to both male and female workers to freely choose standard and full employment. The government will be committed towards ensuring human rights and rights at the workplace of Bangladeshi migrants in receiving countries.

[5] No. SRO 129-L/83/LMVIII/!(11)83.

Institutions

Labour recruitment from Bangladesh involves various government ministries and agencies; private recruiting agents and their local and international intermediaries; and potential migrants and their families.

Ministries

There are five key government ministries which deal with international labour migration: the Ministry of Expatriates' Welfare and Overseas Employment (MoEW&OE); the Ministry of Home Affairs; the Ministry of Foreign Affairs; the Ministry of Finance; and the Ministry of Civil Aviation and Tourism. Until 2001, the Ministry of Labour and Employment was in charge of international labour migration. Then in December 2001, the current Government established a new ministry in response to demands from expatriate Bangladeshis and migrant workers. This new ministry is responsible for implementing the rules framed in 2002 under the Emigration Ordinance 1982 and, accordingly, for promoting, monitoring and regulating the migration sector. Its activities are concentrated in two broad areas: firstly, to create employment overseas and secondly, to address problems experienced by expatriates and to ensure their welfare (Govt. of Bangladesh, 2003).

The role of foreign missions is also extremely important in respect to migration. The functions that Bangladesh missions abroad currently perform regarding labour export are:

(a) Exploring the potential labour market;

(b) Attestation of documents pertaining to recruitment;

(c) Providing consular services for Bangladeshi workers; and

(d) Ensuring the welfare of migrant workers.

Bureau of Manpower, Employment and Training (BMET)

The BMET is the executing agency of the Ministry of Expatriates' Welfare and Overseas Employment in respect to processing labour migration. The BMET was created in 1976 by the Government. Currently, the BMET is responsible for a wide range of functions including: control and regulation of recruiting agents; collection and analysis of labour market information; registration of job seekers for local and foreign employment; development and implementation of training programmes in response to specific labour needs both in the national and international labour market; development of apprentice and in-plant programmes within

existing industries; organizing pre-departure briefing sessions; and resolving legal disputes.

Private recruiting agencies

In the 1970s, the government was responsible for the functions of recruitment. However, since 1981, private recruiting agents have carried out this role, as part of private sector development. The private agencies work under license from the government. On their own initiative, they collect information on demands and orders for foreign employment. After obtaining permission from the BMET, the agencies recruit workers as per the specifications of the foreign employers and then execute the procedures involved in their deployment. Over time, the recruiting agencies became organized under the Bangladesh Association of International Recruiting Agencies (BAIRA). This association was formed in December 1984 with representatives of 23 recruiting agencies. By 2002, the association had a membership of around 700 agencies.

Bangladesh Overseas Employment Services Limited (BOESL)

In 1984, the Government also established the Bangladesh Overseas Employment Services Limited (BOESL) as a limited company to take on a direct recruitment role (Table 5).

Migration under individual contracts

About 55 to 60 percent of recruitment is conducted through individual initiatives and social networks. Usually, persons already deployed in the host countries arrange visas for their friends and relatives through their own contacts. Sometimes these visas are sold to the interested parties. The cost of migration and illicit practices are less when work visas are procured through individual migrants working abroad rather than the private recruiting agencies (Siddiqui ed., 2002).

Bilateral agreements and memoranda of understanding

Bilateral agreements or memoranda of understanding are important instruments through which protection of the rights of migrants is ensured. Successive Bangladesh governments have also sent high-level delegations to various labour-receiving states to negotiate such agreements. However, there has been a general reluctance among labour-receiving countries to sign any bilateral agreements or memoranda of understanding that are legally binding. In response, the government has developed a minimum set of standards for sending labour. When an

Table 5: Percentage distribution of Bangladeshi migrant workers by sending agency (1976-Sept 2003)

Year	BMET	BOESL	Recruiting Agent	Individual	Total
1976	86.73	0.00	4.67	8.61	6087
1977	36.43	0.00	7.45	56.12	15725
1978	27.01	0.00	8.74	64.25	22809
1979	28.40	0.00	12.11	59.49	24495
1980	19.00	0.00	25.85	55.15	30073
1981	10.89	0.00	39.83	49.29	55787
1982	7.14	0.00	39.74	53.12	62762
1983	1.23	0.00	44.44	54.32	59220
1984	0.00	0.28	57.23	42.49	56714
1985	0.00	1.57	50.71	47.72	77694
1986	0.00	2.76	40.58	56.66	68658
1987	0.00	0.46	45.69	53.85	74017
1988	0.00	0.70	50.08	49.22	68121
1989	0.00	0.70	35.89	63.42	101724
1990	0.00	0.42	38.78	60.80	103814
1991	0.00	0.10	44.10	55.80	147131
1992	0.02	0.29	31.76	67.93	188124
1993	0.21	0.23	52.95	46.61	244508
1994	0.13	0.10	51.18	48.60	186326
1995	0.04	0.34	40.60	60.65	187543
1996	0.00	0.19	56.05	43.76	211714
1997	0.01	0.14	37.13	62.72	231077
1998	0.00	0.16	31.87	67.98	267667
1999	0.00	0.12	41.27	58.62	268182
2000	0.00	0.24	41.08	58.69	222686
2001	0.00	0.08	40.57	59.35	188965
2002	0.00	0.10	37.47	62.43	225256
2003 Jan-Sept	0.00	0.22	33.93	65.86	185523
Total	**1.17**	**0.28**	**41.10**	**57.45**	**3582402**

Source: Prepared from BMET data 2003.

understanding is reached with any country for sending labour, the Bangladesh government then hands over a set of standards with the implicit understanding that the receiving country will honour it. However, this does not place the country concerned under any legal obligation.

In the past, Bangladesh has signed agreements with Iraq, Libya, Qatar and Malaysia on sending labour. In these instances, the Government handed over the expected minimum set of standards to the government representatives of those countries. For the first time, in 2003, the Government of Bangladesh signed a memorandum of understanding with Malaysia that contained labour standard issues.

The different steps that have been taken by successive governments show that it has been difficult to effectively manage migration. Management challenges are faced at all the stages, pre-departure, during or after return. In the following I will highlight some of the problems that the government and potential migrants face while participating in the global labour market.

Challenges of governance

Policy challenges

The MoEWOE severely suffers from lack of resources. The total revenue budget of BMET was Tk 112,030,000 in 1997-98, Tk 124,730,000 in 1998-99 and Tk 131,092,000 in 1999-2000. Needless to say, the total government investment in this important foreign exchange earning sector is dismally insignificant.

It is amply demonstrated that labour migration involves different ministries, agencies and migrant workers. Inter-agency collaboration is a pre-requisite for the establishment of programmes and services for streamlining the labour migration process. In 2001, the then caretaker government prepared a strategy document. It recommended for formation of an advisory body. The MoEWOE has established an inter-ministerial committee. However, forming an advisory committee particularly with representation of civil society is not on the agenda. Under these circumstances, coordination is a major problem in governing migration.

Another important policy challenge before the government is to ensure equal access to migration for both men and women. In 1981, the then Government issued a circular imposing a ban on the migration of all categories of female workers other than professionals. In 1987, the ban was replaced by the imposition of restrictions on the migration of women of unskilled and semi-skilled categories. In 1997, a ban was again imposed on all categories of woman workers, including professionals. Later the same year this was changed from a ban to restrictions, from

which professionals were excluded. In 2003, the present Government allowed labour migration of unskilled and semi-skilled women over 35. Nonetheless, they are still discriminated against men, as they require written permission from their male guardians. However, those under 35 are still not allowed to migrate on their own. A section of policy makers now realise that women of all age groups needs to be ensured the right to seek employment but hesitate to pursue radical policy changes.

The association of private recruiting agencies of Bangladesh, BAIRA is quite a powerful body in the area of labour migration governance. They are represented in all relevant committees, i.e. Wage Earners' Welfare Management. Many of the members of BAIRA are members of parliament (MP) as well. By taking advantage of being MPs, they are represented in the inter-ministerial committee and the parliamentary standing committee on labour migration. Until now, BAIRA's actions are geared towards ensuring that government policy on migration is recruitment industry friendly. However, it is yet to orient its function towards emerging as a self-regulatory body of the recruiting agencies. The Bangladesh Chamber of Commerce and Industry, Bar Association of Bangladesh, Medical Council and Press Council, all have developed Codes of Conduct for their members. Violation of such codes of conduct leads to different punitive actions by the professional bodies up to the extent of cancellation of membership. One does not witness any such initiative from BAIRA.

There are around 2,500 travel agencies (TA) in Bangladesh. Under their license these agencies are authorised to issue tickets after verification of visas to those who want to travel abroad. The TAs are barred from engaging in recruitment and processing of documents for emigration. However, a section of them illegally engage in these activities. Of course, a section of recruiting agencies, licensed or unlicensed also sometime take recourse to irregular recruitment. Illicit contacts with immigration officials both in Bangladesh and abroad allow them to conduct such activities. Their activities can be termed as human smuggling. In the recent past there have been cases where potential migrants have fallen victim to their fraudulence, some even lost their lives. In some occasion, recruiting agencies are also engaged in such fraudulence.

It has become extremely difficult to regulate such irregular migration. While the Ministry of EW&OE regulates the recruitment agencies, the Civil Aviation authorities regulate the travel agencies. The travel industry in Bangladesh has formed its own organisation, the Association

of Travel Agencies of Bangladesh (ATAB). Through ATAB the TAs could have been brought under self-regulation. However, its membership currently stands at around 1,000. That leaves around 1,500 agencies without being under any trade umbrella.

Medical tests are mandatory for those who want to go abroad to work. There are around 35 diagnostic centres that conduct health check ups of the migrants upon requisition of the recruiting agents. A section of the diagnostic centres cheat the potential migrants by conducting unnecessary health check ups. They also manipulate results and, create situation for treatment and further tests. Many of these diagnostic centres are owned by recruiting agencies directly or indirectly. Still today, there is no regulation of diagnostic centres by concerned ministries or agencies.

Operational challenges

Pre-departure

Procurement of work permits: The procurement of a work visa, the recruitment of the worker and receipt of emigration clearance are key steps in processing migration. Bangladesh mainly participates in the low-skilled and unskilled labour market and has recently been facing tough competition from the newly emerging labour-sending countries such as Nepal, Cambodia and Indonesia. Such competition among labour-sending countries is resulting in a continuous lowering of standards in the terms and conditions of work. Moreover, unemployment rates have increased in some of the labour-receiving countries. This has led to the formulation of a policy for the indigenization of the labour force. To discourage dependence on overseas labour, some of these countries have introduced a levy to be paid by the employer when they recruit foreign workers. However, these governments did not, at the same time, raise wage rates in an effort to encourage local workers to take up the unskilled jobs. Therefore local workers do not find these jobs attractive and there is a continuing need to import labour for certain types of work. With competition for these jobs among the labour-sending countries, the employers found they could conveniently shift the government levy to the recruiting agencies of the labour-sending countries. As a result, the recruiting agencies not only receive no commission for supplying labour, they also have to purchase the visa from the employers by paying the fee that the employers are required to pay to the government.[6]

[6] Lion Nazrul Islam, E.C member BAIRA, 2002.

The buying and selling of the visa itself has become a profitable business for a certain group of people. A nexus of interest has developed among high-level state functionaries in the labour-receiving countries, their recruiting agents, a group of expatriate Bangladeshis and a section of Bangladeshi recruiting agents. As a result, it has become extremely difficult to secure a visa through what were formerly considered to be the regular channels. Now this nexus is involved in visa transaction through irregular practices. The visas are then put into auction to other agents who have less access to visas. It has become extremely difficult to take action against this group of people, who often hold high places both socially and politically.[7]

System of Dalals (informal agents): Recruiting agencies that purchase visas in turn take their profit margin and then sell the visas to individual migrants. Almost all recruiting agencies are based in the capital city, Dhaka, since it is not financially viable to have offices throughout the country. The agencies recruit through a host of informal agents and sub-agents, who perform two key functions: the recruitment of workers and financial transactions. Recruitment at the grass-roots level is conducted verbally, with even payments made without a receipt. The *dalal* system has not been institutionalized. The *dalals* (informal agents) are not formally registered with the recruiting agents they serve and do not possess any formal identification documents. This has created a situation in which both recruiting agents and their sub-agents can commit fraud and evade responsibility. In the process, a good number of those who wish to migrate are cheated and lose a large part of their assets while processing migration.

Although the 1982 Ordinance empowered the government to cancel and suspend licences and withhold repayment of the security deposit if it is shown that the licensee's conduct is improper or in violation of the law and the prescribed code of conduct, in the absence of any documentation, the government is unable to take action. In 2001, the Interim Government prepared a strategy document, which recommended the recruitment of migrants through the establishment of a database, or by registering the *dalals* with the recruiting agents. The current government has undertaken a programme to implement this. However, the recruitment is still done through conventional method and the database is rarely used.

---

[7] Statement of the representative of BAIRA at the Interagency Meeting organized by the Ministry of Labour on 12 August 2001 for the study on Streamlining Labour Recruitment Process in Bangladesh commissioned by the Ministry.

Issuance of passports: Studies have shown that a large number of migrants fall into the low literacy category. In many cases, they rely on the recruiting agents for issuance of their passports. The recruiting agents usually process a large number of passports at any given time. In some instances migrants do not even sign the passport application form. Instead, the employees of recruiting agents sign the forms on their behalf. As a result, migrants often find themselves in trouble in the receiving country, when their signatures do not match the signature in the passport. Meanwhile, some of the recruiting agents or sub-agents commit fraud in procuring the passports. There are occasions when a visa is sold to a worker other than the one to whom it was issued. When the person or his/her father's name does not match with the one in the passport, the migrant, for all practical purposes, becomes an undocumented worker.

Lack of access to information: Lack of access to information prior to migration places migrants in a vulnerable situation. When a person is unaware of their rights, it becomes almost impossible for them to assert those rights. While processing migration, they do not have access to the names of licensed recruiting agents and they do not understand the importance of keeping documentation. Before embarking on short-term contract migration, it is of critical importance that a migrant worker has at his/her disposal specific information about the country of destination: their rights and duties under the legal regime of the receiving country; cultural sensitivities; and the physical environment. However, the migrant worker is either oblivious to these issues or has to rely solely on information derived from verbal interaction with the *dalals*. The BMET conducts briefing programmes for workers recruited for Saudi Arabia, Malaysia, Kuwait and the Republic of Korea. However, these briefing programmes last only two hours and the range of issues covered is limited.

Although there are various instruments and agencies in operation, protection of migrants in overseas jobs has proved to be difficult to achieve. There is a need to streamline the process of recruitment, ranging from procurement of the visa to sending workers overseas.

In the country of destination

Working conditions: A study[8] has been conducted on the working conditions of Bangladeshi factory workers in countries in the Middle

[8] 'Work Condition of Bangladeshi Factory Workers in the Middle-Eastern Countries' by Tasneem Siddiqui and Jalaluddin Sikdar, commissioned by Solidarity Center, Sri Lanka.

East. It is based on interviews with 100 recently returned migrants from seven countries: Bahrain, Jordan, Kuwait, Oman, Qatar, Saudi Arabia and the UAE. Of the migrants who have been interviewed for this ongoing study, 40 went to Saudi Arabia, where they worked in factory jobs including garment making, construction, plastics, leather processing, welding, tile-making, printing, glass-making, water purification, packaging and the manufacture of gold items. The average salary was about Tk 10,000 for males and about Tk 6,000 for females. This gives some idea of the wage structure for skilled and semi-skilled migrants.

The study also looks at the regularity of payment of wages for migrant workers. Out of the 100 interviewed, 56 stated that they received their salaries regularly without any delay. However, 43 experienced delays in the payment of wages, varying from 10 days to 180 days. In one extreme case, a female migrant worker in the UAE did not receive any payment of wages throughout the entire year she worked in a garments factory.

The same study also throws light on the practice of overtime worked by factory workers. The nature of jobs was such that 59 of the interviewees had to work overtime on a regular basis, 44 worked up to five hours' overtime and 15 worked up to eight hours. Of the 41 who did not do overtime, only 13 mentioned that either their work did not entail overtime or they chose not to work overtime. The rest (28) reported that they stayed for longer periods at work but that this work was not counted as overtime.

Officially, the interviewees were required to work for six days with a one day break every week – usually on Friday. However, as many as 27 interviewees said that they had to work on most of the holidays and could usually enjoy a weekend holiday only once or twice a month.

The above study gives some idea of wages, overtime and holiday conditions experienced by factory workers in the Gulf States. The situation among unskilled workers of course differed significantly from this. Rahim (2002) and Reza (2002) threw light on the work conditions of unskilled and semi-skilled workers in the Gulf region. In Saudi Arabia, during the early 1990s, the monthly wage for an unskilled worker was Rials 600-800, a rate that has now fallen to Rials 250-400 (Rahim, 2002). In Kuwait, the monthly salary of unskilled workers ranged from KD 8-25 (Reza, 2002). A survey of the list of complaints to the BMET from returnee migrants shows that the majority of complaints were related to non-payment of wages.

Accommodation and food: Large companies and formal sectors provide accommodation to their employees in labour camps on the outskirts of the cities. In Singapore, in a typical situation, a large group of 20 to 25 workers are accommodated in small houses. Those who work in cleaning companies, or those who are on a free visa or self-employed arrange their own accommodation. In most cases, employers provided accommodation for the female garment workers. Women who worked in factories lived in hostels, either within the factory premises or outside. Excessive heat was a major problem for some female migrants. In the UAE, women garment factory workers share their rooms with at least 18 co-workers (Afsar et al, 2000). Some women who worked as domestic workers were satisfied with their accommodation. They were given separate rooms and wardrobes in which to keep their belongings. Others who reported that they were made to sleep in kitchens said they had no privacy at all (Siddiqui, 2001).

In the factories, the employers generally provided the food. In the first few months, most of the workers – in particular the factory workers – had problems with regard to food. The food is usually served to suit the preference of the majority of the workers. As a result, the food served in most of the factories where Bangladeshi female migrants work was either Sri Lankan or Southern Indian. A few of the respondents cooked their own food occasionally (Siddiqui et al, 2004). Some of the domestic workers also faced problems with food. In many cases, the female head of house used to keep strict control over food. While some domestic workers were served stale food, others stated that food was abundant and they were allowed to eat as much as they wanted. In order to solve food-related problems, some employers made efforts to buy items that would allow the domestic workers to cook their own food (Siddiqui, 2001).

Changing jobs: Those who work at the low-skills end receive much lower wages than the national minimum rate. This encourages other employers of the receiving country to try to lure them away with a nominally higher wage rate. To reduce the scope for this kind of job change, the employers withhold all forms of documentation such as job contract, travel documents and passports from the migrant worker. In their negotiations with the government of Bangladesh, the receiving countries ensure that the occupational mobility of the labourers they are hiring is minimal. The 1982 Ordinance treats the return of overseas workers before finishing the contract as a punishable offence. Under such circumstances, the ability of migrant workers to assert rights in the labour

market is restrained in many ways. Workers without documents in their possession have major problems in seeking legal redress when employers do not honour the conditions of contracts. The lack of possession of documents also curtails the right of migrant workers to move freely in the city of employment. In Malaysia, in particular, workers are routinely harassed by the law enforcement agencies in the event of a minor offence if they fail to produce any form of identification.

Contract substitution is another measure practised by some employers, which curtails the rights of migrant workers. On arrival in the country of destination, workers are made to sign a second contract which includes reduced wages and lower living and working conditions. In some cases, workers are given a different job than that stipulated in the original contract. In Malaysia, some of the migrant workers end up working on plantations while their original contracts were to work in factories. In Saudi Arabia, workers are often hired as cooks and security guards and then sent to work as agricultural labourers. Because of the extreme hardships faced working on plantations and in the agricultural sector, a considerable number flee these jobs to seek other types of employment. Through the network of Bangladeshi workers, some of the migrants manage to obtain jobs with better terms and conditions. However, having left the jobs for which they had obtained visas, they become undocumented workers and vulnerable to many additional forms of exploitation.

The majority of unskilled and semi-skilled Bangladeshi workers did not have any knowledge about the labour laws of the countries to which they migrated. As a result, it is easy for employers to violate existing laws relating to wages and working and living conditions.

It can be concluded that compared to unskilled workers, formal sector factory workers enjoy relatively better working conditions. However, there is still a large gap between the wages of male and female migrant factory workers, with studies showing that female workers receive much lower wages than their male counterparts. The salary of unskilled workers has fallen drastically both in the Gulf region and in South-East Asia. In addition, a considerable number of workers do not receive their wages on a regular basis and freedom to move from one job to another is restricted for both skilled and unskilled workers.

Measures in ensuring protection

Government

Policy

The government should commit adequate resources to the migration sector. The Ministry of Expatriates' Welfare and Overseas Employment should propose to the relevant ministry for the allocation of resources equivalent to the value of 5 percent of the annual remittances in order to organize services for migrant workers.

The 1982 Ordinance should be replaced by rights-based legislation reflecting the 1990 UN *Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families* and relevant ILO conventions.

The Bangladesh government has signed the 1990 Convention and, as a labour-sending country, it is in Bangladesh's interest to accede to this and ILO instruments forthwith and to frame the necessary enabling national legislation.

To ensure equal access for men and women to overseas employment, government restrictions on the migration of unskilled and semi-skilled women workers below the age of 35 should be rescinded.

Vocational training should be incorporated into mainstream primary and secondary school curricula and textbooks should include chapters on migration. In order to help improve communication skills, English should be introduced as a second language from the first grade.

The existing training institutes of the BMET should be upgraded in order to help increase skilled migration. The BMET also needs to extend its training outreach through joint ventures with non-governmental organisations (NGOs) and private training institutes. In this respect, the BMET should disseminate information on the labour market to organizations that provide training and to NGOs. To ensure that the poor, both men and women, have access to such training, special scholarship programmes should be established. These measures will require a major allocation of resources.

Actions

While processing migration: The Bangladesh missions in Saudi Arabia, Malaysia, the UAE and Kuwait should seek to draw the attention

of the authorities to the negative consequences of work visa manipulation on both parties and urge them to take the necessary steps to halt this practice. The Ministry of Expatriates' Welfare and Overseas Employment should take the necessary legal and administrative actions against identified Bangladeshi procurers and middlemen engaged in the visa trade.

In order to curb illegal practices the Government of Bangladesh will have to play a proactive role in visa procurement. With this aim it should continuously strive for signing MoUs and other bilateral agreements with labour receiving countries. Bangladesh missions in receiving countries, particularly in the Middle East, should act as the prime facilitator of procurement. In doing so, missions will gather information on labour needs for the foreseeable future from the concerned government agencies and the private sector, and negotiate with them.

BMET should refrain from issuing a recruiting licence to anyone who is staying abroad on a work-permit. Existing standards for securing a licence should include a clause that a person holding a work permit in a destination country cannot apply for a licence. If he wants to apply for a licence, then he will have to surrender the work permit. If a person is found holding a licence violating the rule, his licence will be cancelled immediately and the authority will seized the security deposit.

Following the recommendation of the Interim Government of 2001, an advisory committee should be established forthwith. This should act as an inter-ministerial/inter-agency watchdog with legal authority to monitor the management of the migration process.

In an effort to reduce fraudulent practices experienced by migrants before departure, there is a need to either create an employment exchange bureau or to regulate the *dalal* system through mandatory registration.

The renewal of the licence of recruiting agencies should be contingent on performance. The BMET should renew the licences of those recruiting agencies that are able to process at least 50 cases in the previous year. At present, only government officials can lodge complaints against recruiting agents for violation of the provisions of the 1982 Ordinance. This should be changed to ensure that migrant workers have the right to seek redress directly.

Steps should be taken immediately to look into allegations against the diagnostic centre based cartel. For proper monitoring, diagnostic centres have to register with the BMET.

The BMET should concentrate on the regulation and monitoring of the international labour migration sector, rather than on implementing specific programmes.

Before embarking on short-term contract migration, migrant workers should receive pre-departure orientation training. Instead of providing this training itself the government may decide to encourage selected specialized agencies, NGOs and migrant support groups to provide residential, pre-departure orientation training in different migrant-prone areas on a decentralized basis.

In destination areas: The role of foreign missions in the labour-receiving countries should be redefined. Protection of the rights of migrant workers should be considered a priority concern. The government should consider establishing a migrant workers' resource centre (MWRC) in each of the major receiving countries within the premises of and under the administrative jurisdiction of the Bangladesh missions.

The concerned officials of the Ministries of Expatriates' Welfare and Foreign Affairs will conduct an annual review of the performance of labour attaches in various countries, identify the problems encountered, suggest remedial measures and set targets for the following year.

Social protection measures relating to health, security and accidents should be specified in the job contracts of semi-skilled and unskilled workers. The pre-departure orientation training should explain in detail to the migrants all such entitlements.

The Bangladesh missions should inform the authorities of the receiving countries about the difficulties faced by claimants in view of the stringent conditions in place in certain countries with respect to claims for compensation. This issue needs to be pursued in liaison with other labour-sending countries.

The government of Bangladesh should also negotiate with the receiving countries ways of simplifying the procedure for receiving benefits that fall due at the end of the contract period, so that the migrant can begin to process the claim well in advance and collect the amount before his/her departure.

The current practice of forced repatriation of migrant workers who contract a disease such as HIV/AIDS should be discontinued. The sending countries should jointly seek to convince the receiving countries that the cost of medical care should be borne by employers when such diseases are contracted in the destination country.

Upon return: In an effort to ensure continuous employment and earnings on their return to Bangladesh, migrants should be informed about the need to save. To encourage small savers, proper incentive programmes should be established. This may involve offering bonds, shares and mutual funds at attractive rates. Migrant workers should also be informed about the various forms of saving instruments offered by government, non-governmental and private agencies. In this regard, existing legal requirements may be relaxed so that selected micro-finance institutions can mobilize the migrants' savings without providing credit.

The BMET should encourage NGOs and the private sector to offer special programmes for the economic reintegration of the returnees. This may include helping them gain access to: the formal banking sector; credit agencies for soft loans; land allotment on moderate terms; insurance schemes; and access to schemes organized under the Wage Earners' Welfare Fund.

Private Sector

Policy

BAIRA should develop a Code of Conduct for its members to bring order in the recruitment sector. A research body should be responsible for helping BAIRA to prepare such the code of conduct. The research body should form an expert committee consisting of BAIRA representatives, government functionaries and representatives of migrant workers' association. This committee will identify the core areas to be covered in the code of conduct and monitor the preparation of the document.

To curb the activities of visa manipulating syndicates based in destination countries BAIRA have to demonstrate their commitment. BAIRA should take necessary legal and administrative actions against identified Bangladeshi procurers and middlemen engaged in visa trade. Based on the code of conduct, it should renounce membership of the agencies engaged in this practice.

The *Dalal* system should be regulated by BAIRA. The recruiting agencies should be obliged to register their intermediaries on their own and send the list of intermediaries to the manpower authority. The *dalals* will have their geographical area of operation specified. Each of them will have to be issued with a photo-identity and their names will be displayed at local level government offices, including thana, TNO and Union Council offices. It will be a penal offence for individuals to work as inter-

mediary without being registered with a recruiting agency and likewise for recruiting agency to avail services of an individual who is not registered with it. All transactions should be made through banks and *dalals*/agencies have to be required to issue receipts for any transactions made.

Membership to association should be made mandatory to the travel agents. The association/s should develop their code of conduct to regulate the members. Institutional mechanism for coordinating the ministry of civil aviation and ministry of EW&OE should be established.

Diagnostic centres should be brought under the coordination of BMET. GAMCA is the association of the diagnostic centres. It should also bring its members under self-regulation that will include incentives for good practices and penalties for violation of the code of conduct. The current practice of recruiting agencies owning diagnostic centres should be forbidden.

Civil society

In order to reduce exploitation and violation of human rights of the migrants, NGOs, migrant workers' associations and trade unions can play an important role. In Bangladesh, returnee migrants' associations have performed extremely well. There is a need to strengthen their institutional capacity so they can have an even greater impact.

Trade unions are not well informed about migrant issues. Expert bodies and associations of migrant workers should organize consultation meetings with local trade unions to familiarise them with the issue. Subsequently the trade unions of Bangladesh may make concerted efforts to develop links with the trade unions of the receiving countries. They can use international fora to campaign for the membership of migrants in the trade unions of the receiving countries.

In order to fill the gap of information and counter misinformation of vested groups a concerted and vigorous awareness campaign has to be organised. The civil society (NGOs, migrant workers' associations and trade unions) should be the major actor in this respect. Awareness campaigns have to be launched both in Bangladesh and in destination countries.

Measures for implementation of an awareness campaign within Bangladesh include (a) media campaign, (b) awareness campaign through community leaders and development practitioners, and (c) pre-departure

orientation training to the migrants. In the media campaign both print and electronic media have to be used. As the bulk of the aspirant migrants and members of their families are semi-literate or illiterate, radio and television will constitute important channels of dissemination. A parallel campaign is to be launched to develop a conscious and vigilant group at the grassroots. They, on the one hand, will be the conduits of information, and, on the other, will act as a network of civic group to pre-empt fraudulent practices.

Before embarking on short-term contract migration it is of immense importance that a migrant worker has at his disposal specific information about the destination country, general job condition, rights and duties under the legal regime of the receiving country and under international law. The Philippines and Sri Lanka have been at the forefront in managing labour migration. Both these countries have identified pre-departure orientation training as one of the most effective tools in protecting the rights of migrant workers and curbing fraudulent practices from this process. Specialised training NGOs should provide such training. Returnee migrants can be used as trainers.

Once a migrant worker takes up employment in the host country, it is of immense importance that the Bangladeshi missions abroad are in close contact with him/her. Two methods have been suggested in this regard: (a) periodic meetings with the migrant population, and (b) production and distribution of audio and video materials.

Periodic meetings with migrant workers may be organised by the Bangladeshi missions in destination countries. Such meetings have to take place near the work concentrations of Bangladeshi migrants. Taking into account the resources and manpower available, each of the missions will be assigned with a target to organise such meetings. The purpose of the meeting will be to disseminate information on issues pertaining to the needs of the migrant workers. This may include banking facilities, health matters, cultural practices, etc. Members of the Bangladeshi long term emigrant community can act as resource persons in these sessions. Those meetings can be rounded up with films and video shows.

Country specific audio and video materials have to be developed for the migrant population. They will serve both as sources of information and entertainment. Bangladeshi missions will facilitate the distribution of the materials through local ethnic convenience stores that are frequented by the Bangladeshis and big employers of Bangladeshi labour.

The External Publicity Department of the Ministry of Foreign Affairs may be assigned with the task of distribution of the materials. However, the NGOs will help in producing those materials.

Conclusion

Labour migration plays a vital and indispensable role to the economy of Bangladesh. It is true that some of the problems faced by the labour migrants are beyond the jurisdiction of the Bangladesh state. Nonetheless, some of the hardships are caused by the actors within the state. The government can adopt different policies and take actions in making the various actors accountable and protect the migrants The private sector also needs to act responsibly and make efforts to streamline recruitment. The civil society institutions can play a major role in promoting the rights of the migrants through advocacy and training.

References:

Afsar R.,Yunus M. and Islam S. (2000): 'Are Migrants Chasing after the Golden Deer: A Study on Cost Benefit Analysis of Overseas Migration by Bangladeshi Labour,' IOM (mimeo).

Govt. of Bangladesh (2003): *Annual Report-2002 Ministry of Expatriate Welfare and Overseas Employment.*

Murshid K.A.S., Kazi I. and Meherun A. (2000): 'A Study on Remittance Inflows and Utilization', Dhaka, IOM (mimeo).

Quibria M.G. (1986): 'Migrant Workers and Remittances: Issues for Asian Developing Countries', *Asian Development Review*, Vol. 4.

Rahim A.B.M (2002): 'Future of Labour Export to Saudi Arabia', in Siddiqui T. (ed) op.cit., pp. 104-107.

Reza S. (2002): 'Labour Situation in Kuwait', pp. 120-126, in Siddiqui T. (ed.) op.cit.

Siddiqui T. (2001): *Transcending Boundaries: Labour Migration of Women from Bangladesh*, Dhaka, UPL.

Siddiqui T. (ed.) (2002): Beyond the Maze: Streamlining Labour Recruitment Process in Bangladesh, Dhaka, RMMRU.

Siddiqui T. and Abrar C.R. (2001): 'Migrant Workers' Remittances and Micro-finance Institutions', ILO (mimeo).

Siddiqui T., Sikder M. J. and Hossainul Haque K. N. M. (2004): 'Work Condition of Bangladeshi Factory Workers in the Middle East', ACILS (mimeo).